MANIPAL INSTITUTE OF TECHNOLOGY
MANIPAL
(A constituent unit of MAHE, Manipal)

DEPARTMENT OF CIVIL ENGINEERING			
END SEMESTER EXAMINATION		**DECEMBER, 2024**	
Level	**B.Tech**	**Curriculum**	**2018**
Program Name	**Civil Engineering**	**Course Type**	**PE**
Course Name	**Contract Management**	**Course Code**	**CIE 4077**
Semester	**VII**	**Max Marks**	**50**
Date		**Duration**	**03 hrs**

Instructions:

- **Answer ALL the questions.**
- **Data not provided may be suitably assumed**

Q. No.	Question	Marks	NBA		BL
			CO	PO	
1A	Explain, with relevant illustration, the risk sharing between the contracting parties in a) Measurement, b) Costplus, c) Turnkey, and iv) Lump sum contracts.	**4**	1	6,8,10, 11	**3**
1B	Identifying "cartels" within engineering contracts can be challenging despite these practices being considered wrongdoing. Then, what statutory amendments are made to prohibit it, and how can a Principal be vigilant while evaluating the tenders to mitigate this issue?	**3**	2	1,2,3,4,5, 8,9,10,11	**3**
1C	Discuss necessary provisions for the following: i) retention money, ii) performance guarantee, and iii) defect liability period.	**3**	2	1,2,3,4,5, 8,9,10,11	**2**
2A	Can a contractor refuse to execute extra items or those with significant variations from the original Bill of Quantities (BOQ)? It is essential for the contractor to fairly determine rates for these extra items to avoid disputes. Please justify your answer with relevant clauses that regulate such issues and explain the procedure that the contractor must follow to set rates for such extra items.	**4**	3	1,4,6,8,9, 10,11,12	**3**
2B	Cost escalations are a key factor to consider in keeping the contract value in check for projects that extend over longer durations. Explain the mechanism	**3**	3	1,4,6,8,9, 10,11,12	**3**

	that is available in the contract to adjust the prices against cost escalations for POLs.				
2C	Discuss the following with respect to the tendering process: i) Security deposit and ii) Earnest money deposit.	**3**	3	1,4,6,8,9, 10,11,12	**2**
3A	Explain the procedures to claim losses due to the breach i) by the contractor, ii) by the principal, and iii) due to Force Majeure.	**3**	3	1,4,6,8,9, 10,11,12	**2**
3B	Discuss the following with respect to tendering process i) submission of bid ii) receipt and opening of tenders.	**4**	3	1,4,6,8,9, 10,11,12	**3**
3C	Identify a suitable dispute resolution mechanism that is mandated by the World Bank-funded large engineering involving multiple functional departments. Explain the basis of selection based on its working principle.	**3**	4	1,4,6,8,9, 10,11,12	**3**
4A	Identify the key differences between the appointment of an arbitrator and a conciliator.	**4**	4	1,4,6,8,9, 10,11,12	**3**
4B	Highlight any three special features under the Arbitration and Conciliation Act 1996 that make conciliation a special method of dispute resolution.	**3**	4	1,4,6,8,9, 10,11,12	**2**
4C	Explain the legal capacity of the awards by i) the conciliator, ii) the arbitrator, and iii) the court.	**3**	4	1,4,6,8,9, 10,11,12	**3**
5A	List any four judicial lapses that prompt the courts to set aside an arbitrator's award.	**4**	4	1,4,6,8,9, 10,11,12	**2**
5B	Explain the special features of international contracts compared to local contracts.	**3**	5	1,5,6,8,9, 10,11,12	**3**
5C	Explain the clauses in the international contracts that deal with currency and payment-related transactions. List the eligibility criteria for the same.	**3**	5	1,5,6,8,9, 10,11,12	**2**

MARK DISTRIBUTION (CO-wise & BTL-wise)

CO / CLO	Total Marks
1	**4**
2	**6**
3	**17**
4	**17**
5	**6**

BL	Total Marks
2	**19**
3	**31**
4	
5	